



August 18, 2025

California Privacy Protection Agency
Attn: Legal Division – Regulations Public Comment
400 R Street, Suite 350
Sacramento, CA 95811

RE: Public Comment on Accessible Deletion Mechanism

Dear California Privacy Protection Agency:

On behalf of the advertising industry, we provide the following comments in response to the California Privacy Protection Agency’s (“CCPA” or “Agency”) request for comment on its modifications to the proposed regulations to develop and deploy the Delete Request and Opt-Out Platform (“DROP”) under the California Delete Act.¹ We and the companies we represent, many of whom do substantial business in California, strongly believe consumers deserve meaningful privacy protections supported by reasonable laws and responsible industry policies.

We appreciate and agree with the Agency’s decision to remove the data matching standards as previously proposed in Section 7613(a)(2)(A) of the regulations. Removing this matching requirement will help align the DROP with consumer expectations and avoid overly broad execution of deletion requests. That said, in this comment we renew several points we raised in our prior comment to the Agency on June 10, 2025.² This submission incorporates that prior comment by reference, including our comments on the overly broad definition of “direct relationship,” which will draw many more entities into the scope of the statutorily defined term “data broker”; the need for verification of requests submitted by authorized agents; issues related to “standardizing” database architecture; and potential data security concerns associated with the DROP. As our prior comment explained, these and other aspects of the proposed regulations raise significant constitutional and statutory issues.

In addition to our renewed request, we offer the following comments to reiterate key points from our previous submission related to authorized agent verification and database standardization and to raise additional issues created by the new modifications to the proposed rules. Our primary concern is that the proposed regulations would override the CCPA’s robust verification safeguards in favor of an overly broad “matching” standard—one that conflicts with statutory and regulatory requirements and undermines the State’s goal of protecting consumers from privacy harms while respecting their rights and freedoms. Furthermore, it runs counter to the State’s goals of protecting

¹ See *Notice of Modifications to Text of Proposed Regulations – Accessible Deletion Mechanism*, CALIFORNIA PRIVACY PROTECTION AGENCY BOARD (July 31, 2025), located [here](#); see also *Modified Text of Proposed Regulations – Data Broker Registration and Accessible Deletion Mechanism*, CALIFORNIA PRIVACY PROTECTION AGENCY BOARD (July 31, 2025), located [here](#); California Delete Act, SB 362 (Reg. Sess. 2023) (codified at Cal. Civ. Code §§ 1798.99.80 – 1798.99.89), located [here](#).

² See Joint Ad Trades – Public Comment on Accessible Deletion Mechanism at 7–15 (June 10, 2025), located [here](#).

consumers from privacy harms and respecting the rights and freedoms of consumers. More specifically, we ask the Agency to address three areas before finalizing the regulations: (1) the lack of agent authentication provisions in the DROP; (2) the hashing algorithm and database standardization mandates; and (3) the requirement for data brokers to save and maintain consumer deletion lists.

As the nation's leading advertising and marketing trade associations, we collectively represent thousands of responsible companies across the country that make up and support the digital economy. These companies range from small businesses to household brands, advertising agencies, publishers, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet and the digital economy, which accounted for 18 percent of total U.S. gross domestic product ("GDP") in 2024.³ By one estimate, over 1.8 million jobs in California are related to the ad-subsidized Internet.⁴ Our group has more than a decade's worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage with the CPPA further on the non-exhaustive list of issues with the proposed regulations that we discuss in these comments.

I. The lack of authorized agent provisions in the proposal will result in unauthorized data deletion and raise constitutional and statutory concerns.

The Agency's modifications to the proposed rules still lack authentication measures that ensure verification of agents' authority to submit DROP requests on behalf of California residents.⁵ Although the updated proposal would require the CPPA to verify a requestor's California residency,⁶ the proposal would prohibit data brokers from contacting requestors to verify deletion requests submitted through the DROP, a result that puts the proposal in conflict with the Delete Act and the California Consumer Privacy Act ("CCPA") regulations. The proposal continues to raise significant constitutional concerns given the interplay between the lack of verification safeguards and the DROP's mass deletion mechanism.

The proposed regulations not only decline to incorporate reasonable agent verification mechanisms; they also prohibit data brokers from contacting consumers to verify their requests. For these reasons, the proposed regulations arguably conflict with existing law and violate the California Administrative Procedure Act.⁷ The Delete Act permits a consumer's authorized agents to aid in a deletion request.⁸ Under the Delete Act, an "authorized agent" is defined by reference to the CCPA regulations, which provide that such an agent is a person the consumer "*has authorized*

³ John Deighton and Leora Kornfeld, *Measuring the Digital Economy*, INTERACTIVE ADVERTISING BUREAU, 8 (April, 2025), located at https://www.iab.com/wp-content/uploads/2025/04/Measuring-the-Digital-Economy_April_29.pdf.

⁴ *Id.* at 130–32.

⁵ Cal. Code Regs. tit. 11, §§ 7620(b), 7621 (proposed).

⁶ *Id.* § 7620(a), 7621(a) (proposed).

⁷ See *Assoc. Gen. Contractors of Ca., Inc. v. Dep't of Indus. Rels.*, 108 Cal. App. 5th 243, 263–64 (2025) (regulations must be "consistent with the governing law" and "'within the scope of authority conferred' on the agency by the enabling statute" (citation omitted)).

⁸ Cal. Civ. Code § 1798.99.86(b)(8).

to act on their behalf subject to the requirements set forth” in the regulations.⁹ Those regulations expressly permit businesses to verify agents’ authority to act.¹⁰ If a consumer uses an agent to submit a deletion request to a business, the business may require the agent to provide signed proof that the consumer gave the agent permission to submit the request and ask the consumer directly to confirm their identity with the business or confirm that they granted the agent permission to make the request.¹¹

The Agency’s proposed DROP rules conflict with the Delete Act and the CCPA regulations by expressly stating that data brokers may not contact consumers to verify their deletion requests submitted through the DROP.¹² The proposed rules would permit agents to submit requests on behalf of consumers without authorization despite the Delete Act requirements that an agent must be someone the consumer “has authorized” to make a request, and despite the CCPA regulations expressly permitting verification and confirmation from consumers that they have authorized agents to act on their behalf. This structure creates a system where deletion requests served to data brokers by agents through the DROP are subject to different rules than those submitted to businesses directly, raising inconsistency across regulatory regimes and increasing the likelihood of fraudulent requests made through the DROP.

Without authorized agent verification provisions, there will be no deterrent for purported agents to use coercive methods, manipulative processes, dark patterns, or other tactics to persuade consumers to give them authority to act or to act without the knowledge of a consumer. In addition, there will be no means to root out unscrupulous agents who use the DROP to gain a competitive advantage over data brokers with competing business models. For example, entities may assert that they are consumer agents and submit DROP requests to damage their competitors’ businesses and bolster their own position in the marketplace. While the proposed rules require agents to disclose their name, trade name, and email address, the proposed rules provide no process to allow the CCPA or data brokers themselves to validate purported agents’ authority to act. To reduce the likelihood of agent gamesmanship and data deletion that consumers did not request, the Agency should not allow agents to self-certify their authority.

The Delete Act and the proposed regulations also raise constitutional concerns.¹³ Data brokers’ processing of personal information (including sales, disclosures, and other uses of such

⁹ Cal. Code Regs. tit. 11, § 7001(d) (defining “authorized agent”) (emphasis added); Cal. Civ. Code § 1798.99.80(b) (providing that an “authorized agent” has the same meaning as under the CCPA regulations).

¹⁰ See Cal. Code Regs. tit. 11, § 7063(a).

¹¹ See *id.*

¹² Cal. Code Regs. tit. 11, § 7616(c) (proposed).

¹³ Among many other legal infirmities, the statute and the rules may violate the Contracts Clause by impeding data brokers from meeting contractual obligations to provide data-driven products and services to their customers. In addition, by mandating that data brokers delete data through the DROP, and by prohibiting the sale or sharing of any new data collected after such deletion, the Delete Act and the DROP regulations may constitute a regulatory taking in violation of the Takings Clause.

information) is protected speech under the First Amendment.¹⁴ The proposed regulations are content-based and therefore should receive heightened scrutiny. However, if finalized in their current form, the proposed rules would fail any applicable form of First Amendment scrutiny. As explained in our prior comment, among other First Amendment concerns, the regulations’ lack of verification safeguards, when combined with the mass-deletion mechanism, make the regulations more extensive than necessary to advance the State’s privacy interests because they would allow unauthorized agents to effect mass data deletion that Californians did not intend, permit, or expect.¹⁵

II. The proposed hashing algorithm and database standardization requirements are unclear, overly prescriptive, contravene the Delete Act, and run afoul of the First Amendment.

The modifications to the proposed regulations would add new hashing algorithm requirements and additional requirements for a data broker to “standardize” customer records. In particular, the new hashing algorithm requirements would create significant uncertainty and potentially result in matches to data that are *not associated* with a consumer who is requesting data deletion through the DROP—a result at odds with the Delete Act itself as well as the CCPA and its implementing regulations. In addition, the proposed standardization requirements would force data brokers to maintain data in ways that would alter or impact how they deliver their products and services to customers, creating significant operational burdens with impacts on their First Amendment Free Speech rights. Due to these concerns, the Agency should remove these requirements from the proposed regulations.

The proposed regulations to implement the DROP are acutely focused on matching identifiers in consumer deletion lists to data maintained by data brokers rather than ensuring that deletion requests are verifiable. This approach is contrary to the text of the Delete Act, which provides that the deletion mechanism “shall allow data brokers . . . to determine whether an individual has submitted a verifiable consumer request.”¹⁶ The term “verifiable consumer request” comes from the CCPA and its implementing regulations, which define “verify” in relevant part to mean “to determine that the consumer making a request to delete . . . is the consumer about whom the business has collected information.”¹⁷ The CCPA regulations require businesses to verify deletion requests, in some cases using up to three data points for verification.¹⁸ And for good reason. As both the CPPA and the California Attorney General have recognized, verification serves as a crucial safeguard against the real harm that can result from the unauthorized deletion of data or

¹⁴ *Sorrell v. IMS Health, Inc.*, 564 U.S. 552, 558–59 (2011) (holding that a Vermont law unconstitutionally regulated speech where it restricted the sale, disclosure, and use of pharmacy records revealing physicians’ prescribing practices when the information was used by pharmacies for drug marketing).

¹⁵ See *Milavetz, Gallop & Milavetz, P.A. v. United States*, 559 U.S. 229, 249 (2010) (laws subject to intermediate scrutiny must “directly advance a substantial government interest and be no more extensive than necessary to serve that interest”).

¹⁶ Cal. Civ. Code § 1798.99.86(b)(3).

¹⁷ Cal. Code Regs. tit. 11, § 7001(mm).

¹⁸ *Id.* § 7062(d).

the application of other rights to consumers who did not make requests.¹⁹ Indeed, by their plain text, the CCPA regulations provide that, when determining their verification processes, businesses “shall consider” factors including the “risk of harm to the consumer posed by any unauthorized deletion,” with a greater risk of harm requiring “a more stringent verification process.”²⁰

The California legislature itself has acknowledged that lack of proper verification can cause consumer harm. In enacting the Delete Act, the legislature incorporated the CCPA’s exceptions.²¹ In the CCPA, the legislature created an exception to honoring deletion and other consumer requests if doing so would “adversely affect the rights and freedoms” of other individuals.²² The same exception further provides that a verifiable deletion request “shall not extend to personal information about the consumer that belongs to, or the business maintains on behalf of, another natural person.”²³ And when the legislature amended the CCPA in 2020, it clarified that requests to delete do not apply to household data,²⁴ a change intended to address what was at its core a verification problem: the concern that deletion and other rights were being effectuated to apply beyond the data of the consumer who made the request to the data of other household members who made no such request.²⁵

In sum, verifying consumer requests—determining that the requestor is who they say they are and is the person about whom data was collected—has been a central consumer safeguard built into the CCPA, the CCPA regulations, and now the Delete Act. It is a safeguard designed to protect consumers from the State-recognized harm of unauthorized deletion. However, the proposed regulations’ focus on data *matching* rather than consumer *verification* would undermine this safeguard, assuming that the mere possession of data about a person suffices for verifying that person’s identity and confirming that they are in fact the individual about whom the data broker collected data. In this respect, the proposed regulations risk applying deletion requests to data associated with consumers who did not request deletion through the DROP, and allowing submission of fraudulent deletion requests by individuals or entities purporting to be the consumer who is the subject of the request.

¹⁹ California Attorney General, *Initial Statement of Reasons for Proposed Adoption of California Consumer Privacy Act Regulations* (Oct. 11, 2019) at 32, located [here](#) (explaining the importance of verifying deletion requests and the risk of consumer harm from unauthorized deletion); California Privacy Protection Agency, *FSOR Appendix A: Summary and Response to Comments Submitted During 45-Day Comment Period* (Mar. 29, 2023) at 278–79, located [here](#) (noting that “certain businesses may require a more stringent verification pathway because of the sensitive nature of the personal information at issue”).

²⁰ Cal. Code Regs. tit. 11, § 7060(c)(3)(B).

²¹ Cal. Civ. Code § 1798.99.86(c)(2)(B).

²² *Id.* § 1798.145(k) (“The rights afforded to consumers and the obligations imposed on the business in this title shall not adversely affect the rights and freedoms of other natural persons.”).

²³ *Id.*

²⁴ *Id.* § 1798.145(p).

²⁵ The California Attorney General expressly acknowledged these concerns when finalizing the original CCPA regulations. *See, e.g.,* Final Statement of Reasons for Proposed Adoption of CCPA Regulations at 44–45 (Jun. 1, 2020), located [here](#) (recognizing issues with effectuating consumer rights on personal information associated with the wrong consumer in the context of households).

Below we address two aspects of the proposed regulations that reflect the focus on matching rather than mandated verification. These aspects of the proposed regulations should be removed, and the proposed regulations should be updated to emphasize consumer verification to ensure the right data is deleted and the person requesting deletion is who they say they are, as was intended by the legislature and approved by the people of California.

A. Hashing Algorithm

Under the modifications to the proposed rules, in the event a consumer deletion list includes multiple identifiers, a data broker must separately “hash each applicable identifier” in its records, “combine the multiple hashed identifiers for each consumer into a single identifier,” and then “hash the combined identifier before comparing to the consumer deletion list.”²⁶ Then, after hashing records in its own systems pursuant to these rules, the data broker must apply the hashing algorithm contained in a consumer deletion list to the combined identifier.²⁷ Because a consumer deletion list may contain one or several identifiers that could match to data associated with multiple consumers, the proposed hashing requirement has the potential to require data brokers to delete or opt out data associated with consumers who did not request deletion through the DROP.

The proposed rules lack sufficient clarity regarding the identifiers that may be included in a given consumer deletion list. “Consumer deletion list” is defined as “a list containing one or more type[s] of consumer identifiers (e.g. email address, phone number, or combination of name, date of birth, and zip code) for every consumer that has submitted a deletion request through the DROP.” Though it is ambiguous, the definition suggests that such a list *could* include name and zip code. As a result, if a data broker creates a combined hashed identifier for John Smith in zip code 95811, a deletion request served through the DROP from one John Smith with those data attributes could impact the data of *all individuals named John Smith in zip code 95811*. In this respect, the hashing algorithm requirements risk depriving data brokers of the ability to verify deletion requests, potentially resulting in the deletion of data associated with consumers who did not request deletion through the DROP. Even if data brokers characterize deletion requests that match to multiple combined identifiers as “unverified” requests, they will still be required to opt all consumer records matching to those data elements out from sales and sharing.

The proposed hashing algorithm therefore contravenes the Delete Act, the CCPA, and its implementing regulations in several respects. The regulations would prevent effective verification even though the Delete Act provides that the deletion mechanism “shall allow” data brokers to determine whether a deletion request is verifiable.²⁸ However, the proposed regulations forbid data brokers from contacting consumers to verify their deletion requests.²⁹ Moreover, should a single individual’s deletion request under the DROP lead to matches in multiple consumers’ records, multiple individuals may have their data/records deleted or opted out, unnecessarily infringing on

²⁶ Cal. Code Regs. tit. 11, § 7613(a)(2)(A) (proposed).

²⁷ *Id.*; see also *id.* § 7026(d) (proposed).

²⁸ Cal. Civ. Code § 1798.99.86(b)(3).

²⁹ Cal. Code Regs. tit. 11, § 7616(c) (proposed).

the rights and freedoms of other Californians—a result that the Delete Act and CCPA specifically forbid.³⁰

The proposed hashing algorithm also conflicts with the CCPA regulations. Under the CCPA regulations, businesses must verify consumer deletion requests to a high or reasonably high degree of certainty, which may involve matching three pieces of personal information provided by a consumer with personal information maintained by a business “*that it has determined to be reliable for the purpose of verifying the consumer,*” together with a signed declaration under penalty of perjury that the requestor is the consumer whose personal information is the subject of the request.³¹ Businesses are thus given latitude to decide which data elements to request from consumers for verification. A business would likely not, for example, request name, zip code, and date of birth, as those data elements may overlap for many consumers. Even for opt-out requests, which need not be “verifiable,” businesses “may ask the consumer for information necessary to complete the request, such as information necessary to identify the consumer whose information shall cease to be sold or shared by the business.”³² The proposed regulations, which provide no reasonable means to confirm the consumer’s identity and appear to assume that a request via the DROP is automatically verified and free from manipulation,³³ are consequently likely to result in an overbroad application of requests and deletion or opt outs for data that is not associated with the requesting consumer.

For these reasons, the Agency should further modify the proposed regulations to allow verification, consistent with the verification process under the CCPA regulations. Doing so avoids the conflict with the Delete Act and the CCPA and makes it less likely that data brokers will be required to delete the data of consumers whose requests cannot be verified, or to opt out these individuals from sales or sharing—potentially affecting the rights of other consumers who did not make deletion requests.³⁴

B. Database Standardization

Additionally, the proposed modifications would require data brokers to “standardize” their proprietary databases by altering the data they maintain to fit into a prescribed format. The proposed rules would require data brokers to, for example, format date of birth as a string of eight numbers, format zip-codes by removing the plus-4 code entirely (which is essential to improving product delivery accuracy and speed), and format phone numbers without dashes or country

³⁰ See Cal. Civ. Code § 1798.145(k).

³¹ Cal. Code Regs. tit. 11, § 7062(d) (emphasis added).

³² Cal. Code Regs. tit. 11, § 7026(d) (proposed).

³³ This assumption finds no support in the proposed regulations. Beyond the California residency verification requirement, the proposed regulations build no express verification requirements into the DROP. To the contrary, any additional Agency verification processes are *permissive*. Cal. Code Regs. tit. 11, § 7620(b) (proposed) (Agency “may verify” the personal information consumers provide in their deletion requests). This provision, when combined with the prohibition on data brokers contacting consumers to verify their requests, significantly heightens the concerns around unverified requests.

³⁴ *Assoc. Gen. Contractors*, 108 Cal. App. 5th at 263–64.

codes.³⁵ The proposed rules explicitly state that data brokers must implement these methods and any other standardization methods that will “increase the likelihood of a match between its records and the applicable consumer deletion list.”³⁶ In this respect, too, the proposed rules are grounded in a “matching” concept rather than true consumer verification as the Delete Act and the CCPA and its implementing regulations require.

These proposed standardization requirements will be particularly burdensome for small and mid-sized data brokers. In addition, they are likely to create new data security concerns. The proposed regulations’ prescriptive database standardization requirements will give hackers a clear understanding of how data is structured and maintained within data brokers’ systems, thereby making them susceptible to attacks and unauthorized infiltration. The proposed rules also raise First Amendment concerns.³⁷ As noted above, the requirements would mandate that data brokers alter how they compile, use, and communicate consumer data when delivering products and services—in many cases substantively, as evidenced by the requirement to remove plus-4 zip code information and country codes for telephone numbers.³⁸ The standardization requirements therefore limit data brokers’ ability to convey their desired messages to customers. Indeed, the proposed rules are expressly designed to force data brokers to change the contents of their databases to “increase the likelihood of a match” between their own records and identifiers in government-run DROP deletion lists. By mandating that data brokers materially change their proprietary datasets, the standardization requirements will impact the unique data products and services that data brokers provide to their customers.

The proposed rules purport to limit the impact of the standardization requirements by ostensibly clarifying that data brokers must standardize data only for compliance with the regulations and for no other purpose—a change apparently intended to suggest that data brokers need not maintain two separate databases for DROP compliance.³⁹ As a practical matter, however, because of the unique compilation and arrangement of their proprietary databases, data brokers would have virtually no choice but to create and maintain multiple databases. In this respect, the proposal would require data brokers to invest significant additional resources to continue exercising their First Amendment rights in the face of these regulations. To preserve their ability to communicate with customers in the manner they choose, data brokers would need to invest substantial time and resources to create and maintain multiple databases for the same information—one database that meets DROP specifications, and other databases that meet the needs of their

³⁵ *Id.* § 7613(a)(1)(A)(iii), (iv), (v) (proposed).

³⁶ *Id.* § 7613(a)(1)(A)(vi) (proposed).

³⁷ The standardization provisions also present concerns under the California APA. Fundamentally, the provisions appear to exceed the CPPA’s statutory authority, requiring data brokers to reformat their proprietary and custom databases without any specific grant of authority under the Delete Act to impose such far-reaching obligations. *See generally Assoc. Gen. Contractors*, 108 Cal. App. 5th at 265. Moreover, it is far from clear that these provisions are “reasonably necessary to effectuate the purpose” of the Delete Act. *See* Cal. Gov’t Code § 11342.2.

³⁸ *See DoorDash, Inc. v. City of New York*, 750 F. Supp. 3d 285, 298–99 (S.D.N.Y. 2024) (analogizing to *Sorrell* and reasoning that the communication of consumer data is protected speech, and that the challenged New York City law implicated the First Amendment by compelling such speech).

³⁹ Cal. Code Regs. tit. 11, § 7613(a)(1)(C) (proposed).

customers, partners, or internal data teams. This result will create significant costs, particularly for small and mid-size data brokers to build and maintain new databases to comply with DROP requirements and while being able to maintain at least some of their rights to communicate with their customers in the manner they choose.

III. The proposed requirement for data brokers to save and maintain a consumer deletion list to compare to newly collected records is operationally burdensome and unnecessary.

The proposed regulations would require data brokers to save and maintain any deletion lists containing personal information that does not match to data within the data broker's records at the time of comparison.⁴⁰ The proposed rules would then require data brokers to compare any newly collected records with those past deletion lists before the new personal information is sold.⁴¹ This proposed rule introduces a manual process of comparing past deletion lists to newly collected data. In addition, the rule sets forth no reasonable end date to the requirement. A data broker who accesses the DROP for the first time in August 2026 may be required to maintain the consumer deletion lists it retrieves *in perpetuity* if the identifiers appearing on the lists are never added to the data broker's systems.

This rule is also unnecessary, because any newly collected data will be subject to deletion once a data broker accesses the DROP, which it must do by law every 45 days. This 45-day cadence for data brokers to access and effectuate deletion request through the DROP is already two times as fast as the time period in which businesses must execute deletion requests under the CCPA.⁴² Moreover, businesses that receive requests from California consumers under the CCPA are not required to save and maintain those requests for consumers they do not maintain data about in their systems. The proposed requirement for data brokers to maintain deletion lists indefinitely to compare to data that may be collected later is another example of how the proposed DROP regulations treat data brokers differently than other businesses are treated under the CCPA. The Agency should not impose an unnecessary and overly burdensome deletion list retention requirement that would treat data brokers differently than other businesses and could force data brokers to permanently maintain lists containing identifiers that may never surface in their systems.

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⁴⁰ *Id.* § 7613(c) (proposed).

⁴¹ *Id.*

⁴² Cal. Civ. Code §§ 1798.130(a)(2), 1798.145(h)(1) (requiring deletion within 45 days of a verifiable consumer request, with an option to extend the compliance period by an additional 45 days for a total of 90 days to complete the request).



We thank you for the opportunity to participate in this regulatory process and for your consideration of these comments.

Sincerely,

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